

IN THE SENATE

SENATE BILL NO. 1290

BY EDUCATION COMMITTEE

AN ACT

RELATING TO EDUCATION; AMENDING CHAPTER 5, TITLE 33, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 33-512E, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING A PUBLIC SCHOOL SOCIAL ACCESS PASS PROGRAM FOR HOME SCHOOL STUDENTS; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Chapter 5, Title 33, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 33-512E, Idaho Code, and to read as follows:

33-512E. PUBLIC SCHOOL SOCIAL ACCESS PASS PROGRAM. (1) This section shall be known and may be cited as the "Participation in Recreation Outside of Matriculation Act" of the "PROM Act."

(2) For purposes of this section:

(a) "Home school student" means any student in grades 8 through 12 who receives educational instruction outside of the public school system in a home school. It does not include students who are enrolled in dual enrollment pursuant to the provisions of section 33-203, Idaho Code, or students who are enrolled in school district or public charter school virtual education pursuant to the provisions of section 33-1619 or 33-5202A, Idaho Code.

(b) "Public school" means either a traditional public school in a public school district or a public charter school authorized pursuant to the provisions of chapter 52, title 33, Idaho Code.

(c) "School-sponsored social activities" means school-sanctioned activities that are outside of or in addition to the regular academic courses or curriculum of a public school, including but not limited to dances, social events, arts and cultural events, and college and career fairs.

(d) "Social access pass" means an identification credential that allows a home school student to participate in school-sponsored social activities as provided in this section.

(3) Starting in the 2026-2027 school year, home school students shall be eligible to apply for a social access pass allowing them to participate in school-sponsored social activities at one (1) public school located within the attendance boundaries in which the student resides. The social access pass is valid at only one (1) public school and can be used at only school-sponsored social activities sanctioned by such school. Application for a social access pass is strictly voluntary. Home school students may request a social access pass from the respective public school and shall provide proof of residency. A social access pass shall be valid for one (1) academic year.

(4) A public school may charge a fee to home school students for social access passes, not to exceed twenty-five dollars (\$25.00), which is in-

1 tended to cover related costs. Such fee is separate from any other fee or
2 cost charged for admission to or participation in individual school-spon-
3 sored social activities. The public school shall not charge home school stu-
4 dents any additional fees beyond those applicable to enrolled students at-
5 tending the same school-sponsored social activity.

6 (5) Home school students using a social access pass shall have the same
7 privileges as all other students who participate in school-sponsored social
8 activities and shall follow activity rules and standards of behavior that
9 apply to all students participating in the activity. A public school shall
10 make all reasonable efforts to accommodate students utilizing social access
11 passes at school-sponsored social activities to ensure such students' abil-
12 ity to participate.

13 (6) No public school shall impose additional restrictions or limita-
14 tions regarding the social access pass beyond those established in this sec-
15 tion.

16 (7) Nothing in this section shall be construed to infringe on the right
17 of parents or legal guardians to educate their child outside of the public
18 school system. Participation in the social access pass program provided for
19 in this section shall not grant a public school any authority to regulate
20 or interfere with a student's home-based, nonpublic education and shall not
21 change or otherwise impact a home school student's status as a student edu-
22 cated outside of the public school system in a home school. Such participa-
23 tion shall not constitute any form of enrollment, whether full or partial, in
24 the public school system and shall not generate or trigger any state funding,
25 pupil funding, or average daily attendance credit for a school district.

26 (8) All student data collected by a public school pursuant to the pro-
27 visions of this section shall be used solely for the purposes of the pub-
28 lic school social access pass program and shall not be shared with any third
29 party except as provided for by law.

30 SECTION 2. An emergency existing therefor, which emergency is hereby
31 declared to exist, this act shall be in full force and effect on and after
32 July 1, 2026.